AUDITPRORX • PHARMACY AUDIT PLATFORM

Non-Disclosure & Data Usage Agreement

Confidential Legal Document

> This Non-Disclosure and Data Usage Agreement ("Agreement") is entered into between **AuditProRx** ("Company," "we," "us," or "our") and **[Pharmacy Name]** ("Pharmacy," "you," or "your"). AuditProRx provides a technology platform designed to assist pharmacies in uploading, processing, and analyzing inventory records, supplier invoices, temperature logs, and related operational data to generate insights, reports, and analytical outputs through the services described in Section 1. By accessing or using the platform, you confirm that you have read, understood, and agreed to be legally bound by the terms of this Agreement, including the AuditProRx Terms of Service, which are incorporated herein by reference.

1. Platform Services

This Agreement covers all data disclosed through, and all outputs generated by, the AuditProRx platform, including the following services:

- **Inventory Reports:** Upload dispensing and billing records from your pharmacy management system together with wholesaler purchase invoices to generate inventory audit reports, including reconciliation of purchased versus dispensed quantities and PBM-level reimbursement breakdowns.
- **Aberrant Reports:** Analyze dispensing activity to identify unusual patterns and flag aberrant dispensing.
- **Group Reports:** Create or join a pharmacy group and share consolidated inventory reports with the other members of that group.
- **Bin Search:** Identify the PBM and payer type associated with an insurance BIN.
- **Drug Lookup:** Search drug variants, NDC codes, payer performance, and unit pricing drawn from aggregated data across the AuditProRx community.
- **Inventory View:** Discover verified surplus stock at other participating pharmacies for patient-specific transfers, subject to the separate Inventory Network Participation Agreement.
- **Temperature Logs:** Record, save, and export monthly refrigerator and ambient temperature logs, including staff initials, comments, thermometer calibration details, and Pharmacist-in-Charge sign-off.
- **Leads and Notifications:** Receive leads, product updates, and announcements published by AuditProRx inside the platform.
- **Wholesaler File Collection:** Where authorized under the Release and Authorization Agreement, collection of your secondary wholesaler invoices on your behalf through a dedicated AuditProRx email address.

AuditProRx may add, modify, or retire features from time to time. Any new feature made available through the platform is covered by this Agreement from the date it is released.

2. Confidential Information

For purposes of this Agreement, "Confidential Information" includes all non-public data disclosed through the platform, including but not limited to inventory records, prescription-related and dispensing data, supplier and wholesaler invoices, pricing information, reimbursement data, insurance BIN, PCN, and group identifiers, temperature log records, pharmacy group memberships and reports shared within a group, inventory listings and connect requests, drug lookup queries, analytical reports, system-generated outputs, and all communications between the Pharmacy and AuditProRx. Such information shall be treated as confidential and shall not be disclosed to third parties except as permitted under this Agreement.

3. Data Ownership and License

The Pharmacy retains ownership of the raw data it uploads to the platform. However, by submitting such data, the Pharmacy grants AuditProRx a perpetual, irrevocable, worldwide, royalty-free, and transferable license to use, process, analyze, reproduce, adapt, modify, and create derivative works from such data. This license is granted for purposes including, but not limited to, providing services, improving platform functionality, developing new features, conducting research, and supporting analytical or commercial initiatives.

AuditProRx may utilize aggregated or de-identified data derived from such submissions for broader analytical, benchmarking, or commercial purposes, provided that such use does not directly identify the Pharmacy.

4. Platform Use and Data Processing

The Pharmacy acknowledges that AuditProRx operates as a data processing and analytics platform and that submitted data may be processed, transformed, and integrated with internal systems or datasets to generate outputs. Such processing may include normalization, aggregation, statistical analysis, and automated computation necessary for delivering platform functionality and improving system performance.

Certain services make information available to other platform users. Drug Lookup results are derived from aggregated, de-identified community data; reports shared to a pharmacy group are visible to the members of that group; and Inventory View listings are visible to other verified participating pharmacies.

5. Regulatory Compliance

The Pharmacy is solely responsible for ensuring that all data submitted to the platform complies with applicable federal, state, and industry regulations, including healthcare and data privacy laws. AuditProRx is not intended to function as a HIPAA Business Associate unless expressly agreed to in a separate written agreement. Accordingly, the Company disclaims responsibility for any regulatory obligations associated with the Pharmacy's data.

6. Platform Nature and No Warranty

The platform and all associated services are provided on an "as is" and "as available" basis. While AuditProRx endeavors to provide accurate and reliable outputs, no representations or warranties are made regarding the accuracy, completeness, or reliability of any data, reports, or analyses generated through the platform.

7. Use of Outputs and Independent Judgment

The Pharmacy acknowledges that all outputs, reports, and insights generated by the platform are intended solely for informational and analytical purposes. The Pharmacy agrees to exercise independent professional judgment in interpreting such outputs and shall not rely exclusively on them for medical, financial, compliance, or operational decisions.

8. Security and Data Handling

AuditProRx implements commercially reasonable safeguards designed to protect data integrity and confidentiality. However, the Pharmacy acknowledges that no system is entirely secure and accepts the inherent risks associated with electronic data transmission and storage. The Company may retain data, including backups and system logs, as necessary for operational continuity, compliance, and service improvement.

9. Subscription and Pricing

The current subscription fee for AuditProRx is $99 per month, which provides access to core platform features. The Company may introduce additional features, services, or pricing structures in the future. Continued use of the platform following such changes constitutes acceptance of updated pricing.

10. Limitation of Liability

To the maximum extent permitted by law, AuditProRx shall not be liable for any indirect, incidental, or consequential damages arising from the use of the platform, including but not limited to data inaccuracies, business interruptions, or regulatory implications. In any event, total liability shall not exceed the amount paid by the Pharmacy for one month of service immediately preceding the claim.

11. Indemnification

The Pharmacy agrees to indemnify and hold harmless AuditProRx and its affiliates from any claims, liabilities, or damages arising from the Pharmacy's use of the platform, including data submitted, regulatory compliance matters, or third-party claims.

12. Dispute Resolution

Any disputes arising out of or relating to this Agreement shall be resolved through binding arbitration conducted in the State of New Jersey, in accordance with applicable arbitration rules. Each party agrees to resolve disputes on an individual basis and waives the right to participate in class or collective actions.

13. Term and Survival

This Agreement shall remain in effect for the duration of the Pharmacy's use of the platform. Provisions relating to data rights, limitations of liability, indemnification, and dispute resolution shall survive termination.

14. General Provisions

Entire Agreement: This Agreement, together with the Terms of Service, constitutes the complete understanding between the parties.

Amendments: AuditProRx may update this Agreement from time to time. Continued use implies acceptance.

Severability: If any provision is invalid, the remainder remains in effect.

Governing Law: This Agreement is governed by the laws of the State of New Jersey.

By accessing or continuing to use the AuditProRx platform, the Pharmacy acknowledges and agrees to all terms set forth above.